

JACKSON VS. ENTERPRISE ELEMENTARY SCHOOL DISTRICT, ET AL.

Case Number: 24CV-0206371

Tentative Ruling on Motion for Leave to Amend: Plaintiff Kamarin Jackson moves for leave to file a Second Amended Complaint that adds a Seventh Cause of Action. Despite being properly noticed, Defendants Enterprise Elementary School District and Kristin Bowling did not file an Opposition. The procedural requirements for a motion to amend a pleading are set forth in CRC 3.1324 and have been satisfied by Plaintiff.

CCP § 473(a)(1) permits any pleading to be amended in further of justice and on any terms as may be proper, after notice to the adverse party. The Court's discretion in this regard will usually be exercised liberally to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939. "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." *Morgan v. Sup.Ct.* (1959) 172 Cal. App. 2d 527, 530. In general the Court should not concern itself with the validity of the proposed amendment in the motion for leave to amend. *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1048. The validity of the amendment can be challenged by a subsequent demurrer, motion for judgment on the pleadings, or other appropriate proceeding. *Id.*

Delay alone is not sufficient grounds to deny a motion to amend, absent prejudice to the opposing party. *Atkinson v. Elk Corp.* (2003) 109 Cal. App. 4th 739, 761. Prejudice exists, however, where the amendment would result in a delay of trial, loss of evidence, added preparation costs, additional discovery, or other costs. The weight of the prejudices is increased where there is no explanation for the delay in amending. *See, e.g., Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 486-488; *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal. App. 4th 1332, 1345; *Fisher v. Larsen* (1982) 138 Cal. App. 3d 627, 649.

The Court finds that the motion was timely made. Plaintiff has provided good cause for the proposed amendment. No evidence of prejudice has been presented, and Plaintiff has provided an explanation for the delay in amending. The Court notes that the trial in this matter is scheduled for September 30, 2025. However, as no Opposition was filed, the Court does not consider the upcoming trial date to be a sufficient reason to deny the motion.

The motion is **GRANTED**. Plaintiff provided a proposed Order that will be modified to reflect the Court's ruling. Plaintiff is ordered to file the Second Amended Complaint within 10 days of today's hearing date.

JEWETT, ET AL. VS. CALIFORNIA DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT, ET AL.

Case Number: 24CV-0206422

Proposed Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on February 28, 2025, to Petitioners John Wesley Bowen and Steven Christopher Jewett, for failure to appear on February 24, 2025, as ordered on January 23, 2025; failure to appear on January 13, 2025, as ordered on November 13, 2024; and failure to provide notice to Respondents, as ordered on November 13, 2025. There is still no valid Proof of Service on file. Petitioners did not file a response to the Order to Show Cause Re: Dismissal. Monetary sanctions have already been imposed. It appears that Petitioners have made no efforts to effect proper service or pursue the litigation that they initiated.

Without sufficient excuse for the delay and because previous sanctions appear to have been ineffective, the matter is **DISMISSED** without prejudice. All future dates are vacated. The clerk is directed to close the file.

KUNAU VS. CITY OF REDDING, ET AL.

Case Number: 24CV-0205953

Tentative Ruling on Motion to Strike: Defendant City of Redding moves to strike the reference to Gov. Code

§ 815.6 and the prayer for attorney fees from the First Amended Complaint filed by Plaintiff Cody Kunau on March 10, 2025. Plaintiff opposes the motion as to Gov. Code § 815.6 and concedes as to the prayer for attorney fees.

Meet and Confer. Before filing a motion to strike a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). Defendant provided evidence that a letter was sent to Plaintiff in lieu of meeting and conferring in person or by telephone as required by statute. However, a determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike. CCP § 435.5(a)(4).

Merits. A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a). The Court can also strike any part of a pleading that is not drawn or filed in conformity with California law. CCP § 436(b).

“Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” Gov. Code § 815.6.

In *State of California v. Superior Court* (1984) 150 Cal.App.3d 848, 854, 197 Cal.Rptr. 914, the court stated: “Government Code 815.6 contains a three-pronged test for determining whether liability may be imposed on a public entity: (1) an enactment must impose a mandatory, not discretionary, duty ...; (2) the enactment must intend to protect against the kind of risk of injury suffered by the party asserting section 815.6 as a basis for liability ...; and (3) breach of the mandatory duty must be a proximate cause of the injury suffered.” (*Ibid.*; citations omitted.) Whether an enactment is intended to impose a mandatory duty is a question of law for the court. (See *Nunn v. State of California* (1984) 35 Cal.3d 616, 624, 200 Cal.Rptr. 440, 677 P.2d 846; *Fox v. County of Fresno* (1985) 170 Cal.App.3d 1238, 1242, 216 Cal.Rptr. 879.)

One of the essential elements that must be pled is the existence of a specific statutory duty. (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802, 223 Cal.Rptr. 206.) “Duty cannot be alleged simply by stating ‘defendant had a duty under the law’; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged. [Citation omitted.] Since the duty of a governmental agency can only be created by statute or ‘enactment,’ the statute or ‘enactment’ claimed to establish the duty must at the very least be identified.” (*Id.* at p. 802, 223 Cal.Rptr. 206.) Therefore, a “ ‘ ... litigant seeking to plead the breach of a mandatory duty must specifically allege the applicable statute or regulation.’ ” (*Sullivan v. City of Sacramento* (1987) 190 Cal.App.3d 1070, 1080, 235 Cal.Rptr. 844.) “Unless the applicable enactment is alleged in specific terms, a court cannot determine whether the enactment relied upon was intended to impose an obligatory duty to take official action to prevent foreseeable injuries or whether it was merely advisory in character.” (*Ibid.*)

Becerra v. County of Santa Cruz (1998) 68 Cal. App. 4th 1450, 1458.

Plaintiff refers to Redding Municipal Code §§ 13.40.040 and 13.40.050 in the First Amended Complaint.

A. The parks foreman is authorized and directed to plant, inspect and maintain trees in planting strips and public areas, and remove such trees when they institute a hazard or impediment to public travel.

B. Before removing any such tree, the parks foreman shall give the adjoining property owner at least ten days' advance written notice thereof and of the property owner's right to file an objection

to the removal with the commission, whose decision thereon shall be final.

C. Before removing any such tree, the parks foreman shall obtain the concurrence of the director of community services or his designee.

D. No such notice or concurrence shall be required in the case of manifest public hazard and immediate necessity.

Redding Municipal Code § 13.40.040.

A. Notwithstanding Section 13.40.040, the parks foreman may permit a property owner to maintain trees in the parking strip adjoining his property, provided that the type of tree planted therein is one of the trees listed in the comprehensive tree plan.

B. All trimming and other maintenance work upon such trees shall be done by a licensed tree trimmer as provided in Section 13.40.070A or by the owner under the general supervision of the parks foreman and in accordance with the rules established by the comprehensive tree plan.

Redding Municipal Code § 13.40.050.

The only portion of Redding Municipal Code §§ 13.40.040 and 13.40.050 that could possibly constitute a duty is § 13.40.040(a) that directs the park foreman to plant, inspect, maintain, and remove trees.

“ ‘[A]pplication of [Government Code] section 815.6 requires that the enactment at issue be obligatory, rather than merely discretionary or permissive, in its directions to the public entity; it must require, rather than merely authorize or permit, that a particular action be taken or not taken. [Citation.] It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion.’ ” (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 898, 95 Cal.Rptr.3d 183, 209 P.3d 89 (*Guzman*)). Courts construe this requirement “rather strictly, finding a mandatory duty only if the enactment ‘affirmatively imposes the duty and provides implementing guidelines.’ ” (*Ibid.*; see *Clausing v. San Francisco Unified School Dist.* (1990) 221 Cal.App.3d 1224, 1240, 271 Cal.Rptr. 72 (*Clausing*) [“If rules and guidelines for the implementation of an alleged mandatory duty are not set forth in an otherwise prohibitory statute, it cannot create a mandatory duty.”].)

Srouy v. San Diego Unified School District (2022) 75 Cal. App. 5th 548, 559-560.

Nothing before the Court leads the Court to the conclusion that § 13.40.040 was intended to impose an obligatory duty to take official action to prevent foreseeable injuries. Important to the Court’s analysis is the absence in the ordinance of implementing guidelines that direct the park foreman in the performance of his duties related to trees within the city of Redding. Under the law as cited above, this absence of guidance means that the enactment of Redding Municipal Code § 13.40.040 does not impose a mandatory duty as required by Gov. Code § 815.6.

Even if the Court were to find that the first two prongs were met, the third prong the three prong test must be met. That prong requires a showing that the breach of the duty was a proximate cause of the injury.

“ ‘Proximate cause is legal cause, as distinguished from the layman’s notion of actual cause, and is always, in the first instance, a question of law.’ ” (*Golden v. Dungan* (1971) 20 Cal.App.3d 295, 97 Cal.Rptr. 577; *Tate v. Canonica* (1960) 180 Cal.App.2d 898, 5 Cal.Rptr. 28.) Proximate cause “is that cause which, in natural and continuous sequence, unbroken by any efficient intervening cause, produced the injury (or damage complained of) and without which such result would not have occurred.” (*Kettman v. Levine* (1953) 115 Cal.App.2d 844, 253 P.2d 102.)

Whitecombe v. County of Yolo (1977) 73 Cal. App. 3d 698, 702-703.

Certainly, a vehicle hitting a tree (as occurred in this case) could be considered an efficient intervening cause.

As Redding Municipal Code §§ 13.40.040 and 13.40.050 are the only statutes listed in the First Amended Complaint, listing Gov. Code § 815.6 is improper and Gov. Code 815.6 shall be stricken.

As the parties agree, and the Court concurs, that attorney fees should be stricken, the Court will order the prayer for attorney fees stricken without analysis.

The Motion to Strike is **GRANTED**. Gov. Code § 815.6 and the prayer for attorney fees shall be stricken from the First Amended Complaint. The Court notes that Plaintiff requested leave to amend but did not provide how any amendment could cure the defect. Unless Plaintiff appears at the hearing and provides how the defect can be cured, leave to amend will not be granted. Defendant submitted a proposed Order that will be modified to reflect the Court's ruling.

IN RE: MASSEY, III

Case Number: 25CV-0207125

Proposed Tentative Ruling on Petition for Change of Name: Petitioner William James Massey, III seeks to change his name to William James Sebree. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied, with the exception that proof of publication has not been filed. The Court intends to grant the Petition upon presentation of sufficient proof of publication. **An appearance is necessary on today's calendar.**

NELLA SEMAJ FOUNDATION, INC VS. ONE THOUSAND AND NINE, LLC

Case Number: 24CV-0205646

Tentative Ruling on Demurrer: This matter arises out of foreclosure on 18300 Antler School Road, Lakehead, CA 96051 ("Property"). Plaintiff Nella Semaj Foundation, Inc.'s Complaint alleges five causes of action for: 1. Negligence, 2. Violation of Civ. Code § 2923, et seq., 3. Violation of Business and Professions Code § 17200, et seq., 4. Wrongful Foreclosure, and 5. Declaratory Relief. Defendant One Thousand and Nine, LLC demurs to each cause of action on the grounds that they do not state facts sufficient to constitute a cause of action against them, and for uncertainty, pursuant to CCP § 430.10.

Judicial Notice: Pursuant to Evidence Code § 452, Defendant requests the Court take judicial notice of four documents relating to the Property which were recorded with the Shasta County Recorder's Office. The documents are: 1. Deed of Trust recorded July 26, 2023, 2. Notice of Default and Election to Sell Under Deed of Trust, recorded February 22, 2024, 3. Notice of Trustee's Sale recorded May 28, 2024, 5. Trustee's Deed Upon Sale recorded June 25, 2024. Plaintiff objects to the requests for judicial notice, arguing that the Court cannot accept facts contained in the judicially noticed documents as true.

Courts may notice official acts and public records, but may not take judicial notice of the truth of all matters stated therein. *Ragland v. U.S. Bank Nat'l Assn.* (2012) 209 Cal. App. 4th 182, 194 (internal citations omitted). The taking of judicial notice of the official acts of a governmental entity does not in and of itself require the acceptance of the truth of factual matters which might be deduced therefrom, since in many instances what is being noticed, and thereby established, is no more than the existence of such acts and not, without supporting evidence, what might factually be associated with or flow therefrom." *Ibid*. The exception is the grant deed; a recorded deed is an official act of the executive branch, of which courts may take judicial notice. *Ibid*. However, as the Court in *Herrera v. Deutsche Bank Nat'l Tr. Co.* (2011) 196 Cal. App. 4th 1366, 1375, explained in the context of a residential mortgage foreclosure litigation, the truth of the factual matters stated within a recorded deed, or similar document, are hearsay and cannot be considered not reasonably subject to dispute.

Here, Defendant argues that the Court may take judicial notice of the facts stated in the recorded deed regarding compliance with notice requirements, pursuant to Civ. Code § 2924(c), which provides that recitals in the deed of compliance with all requirements constitutes prima facie evidence of compliance and conclusive evidence thereof in favor of bona fide purchasers. Despite the presumption, the factual matters regarding notice may still